National
Qualifications
2026

2026 Philosophy

Paper 1

Higher

Question Paper Finalised Marking Instructions

These marking instructions have been prepared by examination teams for use by Qualifications Scotland appointed markers when marking external course assessments.

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General marking principles for Higher Philosophy

Always apply these general principles. Use them in conjunction with the specific marking instructions, which identify the key features required in candidates' responses.

(a) Always use positive marking. This means candidates accumulate marks for the demonstration of relevant skills, knowledge and understanding marks are not deducted for errors or omissions.

(b) If a candidate response does not seem to be covered by either the principles or specific marking instructions, and you are uncertain how to assess it, you must seek guidance from your team leader.

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Marking instructions for each question

Section 1 — KNOWLEDGE AND DOUBT — Knowledge and doubt holistic marking criteria

Mark essays holistically according to the criteria using a 'best fit' approach. These must be applied in conjunction with the detailed marking instructions for each question.
A response worth 26—30 marks will typically contain: • a deep, detailed and clear understanding of the relevant textual material • well-developed evaluative comments that are likely to be the basis of discussion rather than just being explained • either implicitly or explicitly, a clear and well-supported personal position on the issue that is fully consistent with the descriptive and evaluative material the candidate presents in their response.
A response worth 21—25 marks will typically contain: • relevant, accurate and detailed descriptive information and textual material that clearly addresses the question • several well-explained evaluative comments that may themselves be evaluated • either implicitly or explicitly, a clear and well-supported personal judgement on the issue.
A response worth 18—20 marks will typically contain: • relevant, mainly accurate and detailed descriptive information and textual material that clearly addresses the question • some well-explained evaluative comments • a justified personal view on the issue, although this will vary in quality.
A response worth 15—17 marks will typically contain: • the important descriptive and textual material, although this may be undeveloped and contain some inaccuracies • at least one appropriate evaluative comment • a personal view on the issue that may simply be stated.
A response worth 12—14 marks will typically contain: • some relevant but basic descriptive material with inaccuracies • no relevant evaluative comment or evaluative comment that is inappropriate. • lacks cohesion.
A response worth 9—11 marks will typically contain: • some relevant but often inaccurate material • no relevant evaluative comment or evaluative comment that is inappropriate • little clarity.
A response worth 5—8 marks will typically contain: • occasionally relevant but mostly inaccurate material • no relevant evaluative comment or evaluative comment that is incoherent • little clarity.
A response worth 0—4 marks will typically contain: • little detail and/or accuracy • little or no reference to the question. In the 0—4 range, award 1 mark for each relevant point up to a maximum of 4 marks.

Question			Detailed marking instructions for this question	Max mark
1.			**These instructions must be applied in conjunction with the holistic marking criteria for the knowledge and doubt essay.** Because of the nature of this question, candidates' essays will vary significantly in terms of content. Appropriate content that could be included in an essay is listed below. **A description of their selected material (candidates may select from any aspect of the mandatory course content on Hume to support their line of argument):** Section II — the origin of ideas Perceptions — impressions and ideas: • the 'perceptions of the mind' are divided into two classes, based on their different degrees of 'force and liveliness' • impressions are associated with our sensations, both outward and inward • ideas are associated with memory and imagination and the activity of reflecting on our impressions Simple and complex ideas: • simple ideas are copies of impressions • complex ideas can be formed by the imagination using one of four processes: they can combine (compound), transpose, enlarge (augment) or shrink (diminish) simple ideas copied from impressions • Hume's examples of the golden mountain and the virtuous horse The copy principle: • all our ideas or more feeble perceptions are copies of our impressions or more lively ones • complex thoughts are made up of simple ideas, copied from earlier feelings or sensations • Hume's two arguments to support the copy principle: – any idea that seems to lack relevant corresponding impressions can be traced back to simple ideas that have been worked upon using the processes of the imagination, eg the idea of God as a complex idea – when the relevant impression has been denied through malfunctioning senses or the absence of relevant experiences or absence due to species limitations The missing shade of blue: • a counter-example to the copy principle • Hume says it should not undermine the theory as a whole because it is so singular it is scarcely worth observing	**30**

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Question			Detailed marking instructions for this question	Max mark
			Section IV Part 1 — how we arrive at the knowledge of cause and effect • the distinction between relations of ideas and matters of fact • the claim that all reasonings about matters of fact are based on the relation of cause and effect – Hume's examples of believing a friend to be in France, finding a watch on a desert island and hearing the sounds of someone speaking rationally in the dark – the claim that knowledge about causes is never known a priori but always comes from our experience of finding that particular objects are constantly associated with one other ▪ Hume's example of Adam ▪ examples of where people would intuitively agree and disagree with the claim ▪ the assertion that the principle that causes and effects cannot be discovered by reason also applies in the less obvious cases ▪ Hume's examples of billiard balls and stones to support the claim that an effect cannot be determined a priori • the claim that even after the effect has been suggested the necessity of it being that particular effect cannot be determined a priori • Hume's rejection of science and applied mathematics as possible counter-examples to his position Section IV Part 2 — the foundation of conclusions from experience • after establishing that we don't base our expectation of similar effects from similar causes on deductive reasoning, Hume goes on to argue that it is not based on inductive reasoning either • 'even after we have experience of the operations of cause and effect, the conclusions we draw from that experience are not based on reasoning or on any process of the understanding' • 'all inferences from experience are based on the assumption that the future will resemble the past . . . so no arguments from experience can support this resemblance of the past to the future, because all such arguments are based on the assumption of that resemblance' • Hume claims his conclusion that such inferences are not based on reason is supported by the fact that those with limited reasoning ability are still able to draw such inferences **Discussion of the effectiveness of Hume's reliance on experience as the sole basis for knowledge** Here are some possible ways candidates might argue their case. This is by no means exhaustive: Hume's Empiricism: • a strength of Hume's empiricism is its recognition that human concepts and beliefs apply to a world outside the self • it accounts for knowledge that Rationalism doesn't satisfactorily explain, e.g. Hume's explanation of the idea of God. Concerns relating to perceptions — impressions and ideas: • are all ideas really less lively and vivid than impressions? – a difficulty for Hume if this distinction does not hold is that he cannot account for which of our perceptions, if any, relate to an outside world or external reality	

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Question			Detailed marking instructions for this question	Max mark
			– Hume defends his position against the criticism that some ideas can be more lively than impressions by pointing out that the distinction between impressions and ideas is only confined to the healthy mind • by simply dividing the mind's contents into impressions and ideas, is Hume presenting a naïve psychology? – are the operations of the imagination sufficient to explain how we acquire complex ideas? Concerns about the copy principle: • is Hume right to suggest that we cannot find an idea that does not derive from a sense impression? Can't we have innate ideas? • it seems very plausible that a person who has been blind from birth would not have an understanding, or idea of colour. But does a blind person really have no notion of colour? Concerns about the missing shade of blue: • why is it scarcely worth observing? • Hume could have said that the missing shade of blue is a complex idea, would this make the distinction between simple and complex more problematic? • Hume should have accepted that any counter-example to a universal claim disproves the claim and this could undermine his empiricism General concerns with Hume's theory of perception: • arguably Hume's empiricism collapses into scepticism because it does not guarantee knowledge of an external world — our impressions may not correspond with reality General concerns with Hume's theory of causation: • Kant's claim that there can be synthetic a priori truths – which would suggest that not all knowledge comes solely from experience • Kant's argument that because an understanding of causation is necessary to make sense of experience, our understanding of causation cannot be derived from experience which, if true, would undermine Hume's reliance solely on experience as a basis for knowledge • science has made successful predictions about causation prior to observation suggesting some knowledge comes without reference to experience • modern science does allow us to discover the 'secret powers' which explain eg, why bread nourishes us • Popper's suggestion that the scientific process is more like a process of trial and error than inductive reasoning • constant conjunction does not always yield a belief in necessary connection which means Hume's explanation of causation is not sufficient • inferences about causes sometimes come from single observations • the fact that Hume's account does not adequately explain our belief in cause and effect might undermine his focus on experience as the sole basis for knowledge • the problem of induction has proved to be resistant to attempts at a solution since Hume first expressed it	

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Candidates can achieve marks in the following ranges:

21—30 marks
Candidates accurately explain the selected aspects of Hume's Enquiry and show how Hume uses experience as a basis for knowledge. They will likely explain the connections between the arguments and discuss appropriate criticisms of them in detail while fully engaging with the question. At the top end of this range candidates show depth to their discussion by engaging in a conversational critique of Hume's attempt to establish experience as the sole basis for all knowledge. Eg, they may defend Hume against the criticism that his empiricism collapses into scepticism on the grounds that, unlike Descartes, he was not looking for certainty.

18—20 marks
Candidates explain the selected aspects of Hume's Enquiry, engage in some analysis of them and explain criticisms. They will explain Hume's arguments for the view that experience forms a basis for knowledge and show how their selected aspects support or oppose this idea. Eg, they might suggest Hume's empiricism collapses into scepticism. Essays are likely to contain mainly accurate references to Hume's textual material.

15—17 marks
Candidates describe the selected aspects of Hume's Enquiry and offer at least one appropriate criticism, but do not fully engage with the question. Essays are likely to contain mainly descriptive material with little analysis or evaluation.

0—14 marks
Please refer to the holistic marking criteria for essays in this range.

Section 2 — MORAL PHILOSOPHY - Moral philosophy situation holistic marking criteria

Mark essays holistically according to the criteria using a 'best fit' approach. These must be applied in conjunction with the detailed marking instructions for each question.
A response worth 26—30 marks will typically contain: • a deep, detailed and clear understanding of the relevant information and the moral theory • a detailed, methodical and sophisticated response to the situation • well-developed evaluative comments that are likely to be the basis of discussion rather than just being explained • either implicitly or explicitly, a clear and well-supported personal position on the issues raised by the situation fully consistent with the descriptive and evaluative material the candidate presents in their response.
A response worth 21—25 marks will typically contain: • relevant, accurate and detailed descriptive information in relation to the moral theory that clearly addresses the question • a detailed and methodical response to the situation • several well-explained and developed evaluative comments that may themselves be evaluated • either implicitly or explicitly, a clear and well-supported personal judgement on issues raised by the situation.
A response worth 18—20 marks will typically contain: • relevant, mainly accurate and detailed descriptive information in relation to the moral theory that clearly addresses the question • a variable response to the situation in terms of detail and relevance • several well-explained evaluative comments • a justified personal view on issues raised by the situation, although this will vary in quality.
A response worth 15—17 marks will typically contain: • the important descriptive material, although this may be undeveloped and contain some inaccuracies • reference to the situation but with little depth • at least one appropriate evaluative comment • a personal view on issues raised by the situation that may simply be stated.
A response worth 12—14 marks will typically contain: • some relevant but basic descriptive material with inaccuracies • no relevant evaluative comment or evaluative comment that is inappropriate • lacks cohesion.
A response worth 9—11 marks will typically contain: • some relevant but often inaccurate material • no relevant evaluative comment or evaluative comment that is inappropriate • little clarity.
A response worth 5—8 marks will typically contain: • occasionally relevant but mostly inaccurate material • no relevant evaluative comment or evaluative comment that is incoherent • little clarity.
A response worth 0—4 marks will typically contain: • little detail and/or accuracy • little or no reference to the question. In the 0—4 range, award **1 mark** for each relevant point up to **a maximum of 4 marks**.

Question			Detailed marking instructions for this question	Max mark
2.			**These instructions must be applied in conjunction with the holistic marking criteria for the moral philosophy situation essay.** The following list contains content that is likely to be included in an appropriate answer. This list is not exhaustive. Candidates may respond to the question in different ways. **Points of knowledge and understanding may include:** the key features of classical utilitarianism which are appropriate to the scenario: • consequentialism — the view that holds the consequences of an action as the primary factor in calculating its moral worth • hedonism or the hedonic principle — the principle that claims that whether an action is morally right or wrong depends on whether it promotes the maximum pleasure • equity principle — this principle claims that everyone's interests are of equal importance or at least are worthy of equal consideration • greatest happiness principle — the principle that the more happiness and the less unhappiness an action produces, the more morally praiseworthy it will be; an action is right if it produces the greatest happiness for the greatest number and wrong if it produces the reverse of happiness • Bentham's hedonic calculus — properties of the happiness (intensity, duration, certainty and propinquity); properties of the action (fecundity and purity, that is, a consideration of future consequences); extent, that is, the need to calculate the effects on all those affected by the action • act utilitarianism — an action is right if it maximises happiness • rule utilitarianism — an action is right if it conforms to a rule that is in place because everyone following that rule maximises happiness	**30**

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Question			Detailed marking instructions for this question	Max mark
			Points of analysis and evaluation may include: • how Bentham's calculus may be applied in this situation, eg: – how many people will be affected by the action in positive and negative ways? – the immediacy and intensity of the pleasure to the country which has benefitted from Dave's action – the likelihood that this will lead to further benefits such as better health in general which enhances quality of life, leads to an improved life expectancy in the country – duration would arguably be short lasting – Dave's contribution (though having positive impacts) is limited in the quantity of malaria nets provided. – Would he have been better investing in long-lasting research into the eradication of malaria rather than the short-term fix of malaria nets? • issues relating to the use of Bentham's hedonic calculus in these situations. Eg the subjectivity of the hedons – some people may regard this as unacceptable because it is practically impossible to quantify how much happiness/suffering is involved – some people may regard this as acceptable because although difficult, it acts as a useful guide as to what should be considered • it is problematic as we just do not know what a utilitarian would do if presented with this decision as there are different ways of calculating consequences — a discussion of how this might impact the acceptability of utilitarianism as a moral theory • the difficulty of being unrealistically demanding: – Utilitarianism asks us to take many things into consideration and always to strive for the highest possible good, we will often be required to act in a way disadvantageous to ourselves – some people may regard this as unacceptable because it is unrealistic – some people may regard it as acceptable because a moral theory should be demanding – could actions like this ever be classed as supererogatory? a discussion of whether this negatively impacts using utilitarianism in similar situations – a discussion of whether utilitarianism demands us to strive for global pleasure and how this impacts the acceptability of utilitarianism as a moral theory – do actions like this mean we must prioritise the happiness of strangers over the special obligations we feel to those we have special relationships with, such as family and friends? • predicted versus actual consequences; could Dave have generated more pleasure by pursuing his future career in finance?	

Candidates can achieve marks in the following ranges:

21—30 marks
Candidates fully engage with the question by analysing and discussing utilitarian approaches to the given situation with detailed reference to the main features of the theory. Candidates are likely to give a very detailed and accurate account of utilitarianism and are clear on how a utilitarian would consider the moral implications and the morally relevant features of this situation. At the top end of this range candidates show depth to their discussion by engaging in a conversational critique of the issues raised: eg candidates may argue that for a utilitarian there can be no such a thing as a supererogatory action, and could make the case that this is not a critique as morality should be demanding.

18—20 marks
Candidates accurately describe the main features of utilitarianism, analyse utilitarian approaches and explain relevant criticisms with reference to the situation. Candidates show a clear understanding of the key features of utilitarianism. In their evaluation, they may simply present the critique that utilitarianism is too demanding in expecting actions such as Dave's.

15—17 marks
Candidates describe the main features of utilitarianism and explain utilitarian approaches in relation to the given situation although this may be lacking development. They offer at least one appropriate criticism but do not fully engage with the question. Candidates show a basic understanding of utilitarianism, eg, they may mention the hedonic calculus, but their comments and analysis may lack development.

0—14 marks
Please refer to the holistic marking criteria for essays in this range.

Moral philosophy quotation holistic marking criteria

Mark essays holistically according to the criteria using a 'best fit' approach. These must be applied in conjunction with the detailed marking instructions for each question.
A response worth 26—30 marks will typically contain: • a deep, detailed and clear understanding of the relevant information and the moral theory • a detailed, methodical and sophisticated response to the issues raised by the quotation • well-developed evaluative comments that are likely to be the basis of discussion rather than just being explained • either implicitly or explicitly, a clear and well-supported personal position on the issues raised by the quotation that is fully consistent with the descriptive and evaluative material the candidate presents in their response.
A response worth 21—25 marks will typically contain: • relevant, accurate and detailed descriptive information in relation to the moral theory that clearly addresses the question • a detailed and methodical response to the issues raised by the quotation • several well-explained and developed evaluative comments that may themselves be evaluated • Either implicitly, or explicitly, a clear and well-supported personal judgement on the issues raised by the quotation.
A response worth 18—20 marks will typically contain: • relevant, mainly accurate and detailed descriptive information in relation to the moral theory that clearly addresses the question • a response to the issues raised by the quotation which, in the main, shows detail and relevance • several well-explained evaluative comments • a justified personal view on the issues raised by the quotation, although this will vary in quality.
A response worth 15—17 marks will typically contain: • the essential descriptive material, although this may be undeveloped and contain some inaccuracies • reference to the issues raised by the quotation but with little depth • at least one appropriate evaluative comment • a personal view on the issues raised by the quotation that may simply be stated.
A response worth 12—14 marks will typically contain: • some relevant but basic descriptive material with inaccuracies • no relevant evaluative comment or evaluative comment that is inappropriate. • lacks cohesion
A response worth 9—11 marks will typically contain: • some relevant but often inaccurate material • no relevant evaluative comment or evaluative comment that is inappropriate • little clarity.
A response worth 5—8 marks will typically contain: • occasionally relevant but mostly inaccurate material • No evaluative comment or evaluative comment that is incoherent • little clarity.
A response worth 0—4 marks will typically contain: • little detail and/or accuracy • little or no reference to the question. • In the 0–4 range, award 1 mark for each relevant point up to a maximum of 4 marks.

Question			Detailed marking instructions for this question	Max mark
3.			**These instructions must be applied in conjunction with the holistic marking criteria for the moral philosophy quotation essay.** The following list contains content that is likely to be included in an appropriate answer. This list is not exhaustive. Candidates may respond to the question in different ways. **Points of knowledge and understanding may include:** The key features of classical utilitarianism which are appropriate to the quotation: • consequentialism — the view that holds the consequences of an action as the primary factor in calculating its moral worth • hedonism or the hedonic principle — the principle that claims that whether an action is morally right or wrong depends on whether it promotes the maximum pleasure • equity principle — this principle claims that everyone's interests are of equal importance or at least are worthy of equal consideration • greatest happiness principle — the principle that the more happiness and the less unhappiness an action produces, the more morally praiseworthy it will be; an action is right if it produces the greatest happiness for the greatest number and wrong if it produces the reverse of happiness • Bentham's hedonic calculus — properties of the happiness (intensity, duration, certainty and propinquity); properties of the action (fecundity and purity, that is, a consideration of future consequences); extent, that is, the need to calculate the effects on all those affected by the action • act utilitarianism — an action is right if it maximises happiness • rule utilitarianism — an action is right if it conforms to a rule that is in place because everyone following that rule maximises happiness **Points of analysis and evaluation may include:** **It is a fair criticism:** • tyranny of the majority — making decisions based on maximising happiness for the greatest number may lead to situations where one group of people always get their way because they make up the larger proportion. This would be unfair on the smaller group who could suffer • actual versus predicted consequences — there could be difficulties in predicting whether the consequences of some actions are going to lead to the greatest happiness of the greatest number • justice and respect of human rights would seem to trump pleasure as a basis for moral decisions. Therefore, happiness is not the only, or indeed the most important consideration when deciding on moral actions • we intuitively regard good motives to be morally relevant. According to utilitarianism an action done with a bad motive but that produces good consequences could be classed as morally good • the theory assumes that happiness can be quantified and compared across individuals, but people have different conceptions of what constitutes happiness making it difficult to evaluate	**30**

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Question			Detailed marking instructions for this question	Max mark
			• according to act utilitarianism certain actions are morally required despite those actions intuitively feeling morally wrong, eg killing someone to end the suffering of the majority • Utilitarianism asks us to take many things into consideration and always to strive for the highest possible good, we will often be required to act in a way disadvantageous to ourselves. Some people may regard this as unacceptable because it is unrealistic • is utilitarianism too morally demanding? **It is not a fair criticism:** • rule utilitarianism tries to avoid the problem of questionable decisions because it has rules in place that shouldn't allow for unfair outcomes. • when making moral decisions people intuitively consider the consequences of actions to determine what they should do • intuitively we seek to maximise pleasure and minimise pain and suffering • the equity principle means that all people's happiness is considered equally which means any decision made on this basis will be fair • utilitarians would consider all consequences when considering whether an action was morally acceptable, so they would not allow an action which would lead to pain in the longer term even if it seemed to offer some immediate happiness to some people • utilitarianism seems to demand we act counterintuitively by performing actions such as killing an innocent person for the greater good. However, Bentham would never have supported these kinds of actions because the wider impact of their being morally required would result in greater suffering overall • most democratic governments adopt a form of utilitarian thought as the laws they propose are designed to accord with the greatest happiness principle	

Candidates can achieve marks in the following ranges:

21—30 marks
Candidates provide a very detailed and accurate account of utilitarianism, explaining the relevant features and the various ways in which this criticism might be used to challenge them. They may appreciate and discuss the distinct implications the criticism has for different types of utilitarianism. They consider whether the criticism in the quotation is fair or unfair, while also discussing in depth how utilitarians may respond to the criticism or explain criticisms which may be relevant to the arguments presented. At the top end of this range candidates show depth to their discussion by engaging in a conversational critique of the issues raised: evaluation will form the basis of discussion and is much more than a list of problems.

18—20 marks
Candidates accurately describe the relevant features of utilitarianism and respond to the quotation by making comments about whether the criticism is fair, while also considering how utilitarians may respond to it. Candidates show a clear understanding of utilitarian ethics, and why this criticism might apply, eg, they might highlight the problematic nature of the consequentialist principle.

15—17 marks
Candidates describe the relevant features of utilitarianism and respond to the quotation, showing an understanding of why the criticism may be made. Candidates tend to show a basic understanding of utilitarianism, eg, they will explain how utilitarianism emphasises the maximisation of pleasure, but their explanation in reference to the quotation may lack depth or relevance.

0—14 marks
Please refer to the holistic marking criteria for essays in this range.

[END OF MARKING INSTRUCTIONS]